

TENTATIVE RULING FOR June 9, 2026

Department S22 – Judge David Driscoll

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If you (or both parties) wish to submit on the Tentative, notify the other party and call the department by 4:00 pm the day before and your appearance may be excused unless the Court orders you to appear.

You must appear at the hearing if you are so directed by the court in the tentative ruling. Be prepared to address those issues set forth by the court in its ruling.

UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.

CIVSB2418718

CITY OF HIGHLAND, et al. v. FAYEZ SHAHATIT, et al.

TENTATIVE RULING

Final judgment was entered against all Defendants on May 28, 2025, enjoining Defendants, and each of their agents, employees, representative, officers, directors, and those acting in concert with them ... from permitting, allowing, maintaining and/or facilitating any of the following conditions at the subject property:

1. Operating, leasing, causing, allowing, or permitting any condition constituting a public nuisance under the Highland Municipal Code and/or laws of the United States of California;
2. Operating, leasing, causing, allowing, or permitting the parking or storing of semitrucks and/or trailers on the Property without approval from the City of Highland; and
3. Operating any business at the Property without a valid business license from the City of Highland.

On April 2, 2025, the Court conducted a hearing on its Order to Show Cause why Defendants should not be held in contempt of the Judgment. On April 20, 2026, the Court found Defendant Nadar Shahiti guilty of contempt and issued an Order and Judgment of Contempt.

Now before the Court is Defendants Nadar and Esther Shahatit's (collectively, "Defendants") Motion to Vacate Order and Judgment of Contempt.

Under Code of Civil Procedure section 473, subdivision (b), "the court may, upon any terms as may be just, relieve a party ... from a judgment, dismissal, order, or other proceeding taken against him or her

through his or her mistake, inadvertence, surprise, or excusable neglect.” Relief under Code of Civil Procedure section 473, subdivision (b) is discretionary unless the application is accompanied by an attorney affidavit of fault.

Excusable neglect is “that neglect which might have been the act of a reasonably prudent person under the same circumstances.” (*Alderman v. Jacobs* (1954) 128 Cal. App. 2d 273, 276.) “Inadvertence is lack of heedfulness, or attentiveness, inattention, fault from negligence.” (*Alderman v. Jacobs, supra*, 128 Cal. App. 2d at 276.)

The Motion

Defendants bring this motion under Code of Civil Procedure section 473, subdivision (b). As with their opposition to the OSC re: Contempt, Defendants reassert that they cannot comply with the judgment because they do not own, possess, or control the subject property, making compliance legally impossible. (Mot. pg. 1.) Defendants restate that Defendant Fayad, who is deceased, holds title to the land and that the property has not been probated following his death. As a result, Defendants argue the Court cannot impose liability on non-owners. Defendants further argue that the order violates their due process rights. Last, Defendant’s note that as of April 14, 2026, they have removed the semi-trucks and/or trailers on the Property in compliance with the Judgment. (Mot. Ex. A.) However, according to Exhibit A, the accessory structure/garage had been left open allowing for unauthorized entry by vagrants which, the City states, constitutes a public nuisance in violation of the Judgment.

Opposition

Plaintiffs argue the motion was improperly noticed and not timely served. Furthermore, Plaintiffs argue Defendants have failed to demonstrate that relief under section 473(b) is warranted. Plaintiffs also note that Defendants admitted in their Answers (General Denials) that they are responsible for the truck stop business on the Property. These judicial admissions establish that Defendants have control over the Property and are able to comply with the Judgment because they allowed the semi-trucks to be parked on the Property.

Reply

Defendants argue that Plaintiffs have mischaracterize their argument in that their Motion does not merely express disagreement with the Court’s ruling but rather challenges the legal validity of the contempt finding. Defendants note that the Court has the inherent authority to vacate void or legally defective orders entered in violation of due process. Defendants further argue that Plaintiffs confuse their prior cooperation with control: “temporary actions taken as a courtesy, cooperation with code enforcement, or attempts to assist in resolving nuisance conditions do not create legal ownership, legal possession, or legal authority sufficient to sustain a contempt finding.” (Reply, pg. 2.) Defendants also argue that they did not exercise control over the trucks or operated a truck stop business and that their pleadings do not constitute an admission of ownership, operation, or control of a truck stop business, and the evidence presented at the contempt hearing demonstrates that third parties not Defendants owned and controlled the trucks at issue.

Analysis

Regarding Plaintiffs’ initial argument that the motion was not properly served, here, the hearing is set for June 9. 16 court days before the hearing is May 18. (Code Civ. Proc., § 1005, subd. (b).) Because the motion was served by mail, the required 16-day period of notice before the hearing is increased by five calendar days, or May 13. As the proof of service indicates the motion was served on that day, it is timely.

Furthermore, it appears that the motion was served on Plaintiffs counsel who is jointly representing both City and State. Although it is possible Defendants only served one copy of the motion, it is still apparent that Plaintiffs have received a copy of the motion. Furthermore, Plaintiffs' opposition substantively responds to the motion, so Plaintiffs' objection is waived. (*Alliance Bank v. Murray* (1984) 161 Cal.App.3d 1, 7.)

As to relief under section 473, subdivision (b), Defendants have not provided any evidence or argument that the Order and Judgment of Contempt was taken against them through their mistake, inadvertence, surprise, or excusable neglect. Nevertheless, it appears that Defendants are actually seeking the relief outlined in subdivision (d) of Section 473, which provides: "The court may, upon motion of the injured party, or its own motion, correct clerical mistakes in its judgment or orders as entered, so as to conform to the judgment or order directed, and may, on motion of either party after notice to the other party, set aside any void judgment or order." "Trial courts have no statutory power under this provision to set aside a judgment that is *not* void." (*Lee v. Yan* (2025) 115 Cal.App.5th 975, 978.)

As a general rule, the elements of contempt include (1) a valid order, (2) knowledge of the order, (3) ability to comply with the order, and (4) willful failure to comply with the order. (*Anderson v. Superior Court* (1998) 68 Cal. App. 4th 1240, 1245.) In its written ruling on the Order and Judgment of Contempt, the Court found:

"[T]he testimony of Gary Chambers and Barrie Owens establishes beyond a reasonable doubt that the Defendants Nader and Esther Shahatit had the ability to comply with the Judgment entered by the court and willfully disobeyed the order by permitting the simi tractor/trailers to remain parked and stored at the subject property from the date of the issuance of the Judgment to the present. The testimony established, inter alia, the defendants represented to the Officers that they were going to remove and evict persons (homeless) from the property who were on the property without permission; Esther would ask for more time to complete the process; Nader and Esther had placed the property in escrow for sale and Esther stated that they were actively trying to sell the property; the property fell out of escrow and Esther asked for more time to remove homeless persons and abate the property; at one point defendants on at least 2 occasions abated the nuisance and actually had vehicles removed from the property (2019/2020); and Nader Shahatit on separate occasions was able to have vehicles removed using third parties. All of these actions by the defendants occurred many years after Fayez Shahatit passed away (2015), who is purportedly the sole owner of the property according to a recorded grant deed."

[""]

The court concludes that the testimony of the Code Enforcement Officers is sufficient to establish beyond a reasonable doubt that Defendants, and solely these defendants, had control and possession of the property and had the ability to comply with the Judgment by removing the semi-trucks and/or trailers from the property, thereby abating the nuisance. The failure to exercise their ability to remove the semi-trucks and/or trailers from the time of the entry of the Judgment (May 28, 2025) is unexplained and intentional. The defendants have intentionally continued to permit and allow the parking or storage of trucks and trailers on the property without the City's approval.

(Order and Judgment of Contempt, pg. 2.)

Defendants have failed to demonstrate that the underlying Judgment and the Order and Judgment of Contempt are void or that they cannot comply with the underlying Judgment. As with their opposition to the contempt proceedings, Defendants provide no evidence in support of their motion demonstrating their

inability to remove the vehicles. The arguments raised by Defendants in this motion have already been addressed and rejected by the Court and the motion fails to demonstrate the Court erred in this respect.

There is no showing that the Order and Judgment of Contempt is void on its face or in substance.

TENTATIVE RULING

The Court denies Defendants' Motion to Set Aside the Order and Judgment of Contempt.